

ever, there was no reason, in fact, why the characters of trustee and executor should not be united in the same person without confusion, and so it has since been determined (*b*). But where the trust was expressly to pay the settlor's debts "according to their priority, nature, and specialty," a bond debt with interest was payable before a simple contract debt (*c*). But now all debts of persons who may have died on or after 1st January, 1870, are payable *pari passu*.

5. **Unclaimed dividends.**—If there be a remnant of *unclaimed dividends* left in the hands of the trustees, it does not belong to the trustees for their own benefit, but will be divisible amongst the unpaid creditors who do claim (*d*).

Thirdly. As to allowance of interest.

1. **Interest not allowed on simple contract debts.**—Whether the trust be created by deed (*e*), or will (*f*), and though the fund has been making interest (*g*), the trustees will not be justified in paying interest upon *simple contract debts* not carrying interest; and *a fortiori*, this is the case where interest is expressly directed as to some particular debts (*h*). Where the trust was *by deed*, but the creditors had not been made parties, Lord Eldon observed, "The mere direction to pay a debt does not infer either contract or trust to pay interest upon debts by simple contract. As to *contract*, the creditors did not execute the deed, and there was nothing to prevent their suing the debtor after the execution; and no *considera-*

case, 2 Freem. 49; *Delany v. Delany*, 15 L. R. Ir. 55.

(*b*) *Prowse v. Abington*, 1 Atk. 482; *Newton v. Bennet*, 1 B. C. C. 135; *Silk v. Prime*, *ib.* 138, note; S. C. 1 Dick. 384; *Lewin v. Okeley*, 2 Atk. 50; *Barker v. Boucher*, 1 B. C. C. 140, note.

(*c*) *Passingham v. Selby*, 2 Coll. 405.

(*d*) *Wild v. Banning*, 12 Jur. N. S. 404.

(*e*) *Hamilton v. Houghton*, 2 Bligh, 469, sec 186; *Car v. Burlington*, 1 P. W. 228, as corrected in Cox's ed.; *Barwell v. Parker*, 2 Ves. 364; *Shirley v. Ferrers*, 1 B. C. C. 41; and see

Stewart v. Noble, Vern. & Scriv. 536; *Creuze v. Hunter*, 2 Ves. jun. 165; S. C. 4 B. C. C. 319.

(*f*) *Lloyd v. Williams*, 2 Atk. 108; *Stewart v. Noble*, Vern. & Scriv. 528; *Dolman v. Pritman*, 3 Ch. Rep. 64; *Nels.* 136; *Freem.* 133; *Bath v. Bradford*, 2 Ves. 588, *per* Lord Hardwicke; and see *Tait v. Northwick*, 4 Ves. 816; *Bothomly v. Fairfax*, 1 P. W. 334, note; *Maxwell v. Wettenhall*, 2 P. W. 26, ed. by Cox, are overruled.

(*g*) *Shirley v. Ferrers*, 1 B. C. C. 41; but see *Pearce v. Slocombe*, 3 Y. & C. 84.

(*h*) *Jenkins v. Perry*, 3 Y. & C. 178.